

**HOUSE . . . . . No. 951**

---

**The Commonwealth of Massachusetts**

PRESENTED BY:

***Carmine Lawrence Gentile***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

**An Act to eliminate hydraulic fracturing in the Commonwealth.**

PETITION OF:

| NAME:                           | DISTRICT/ADDRESS:              | DATE ADDED:      |
|---------------------------------|--------------------------------|------------------|
| <i>Carmine Lawrence Gentile</i> | <i>13th Middlesex</i>          | <i>1/10/2025</i> |
| <i>James B. Eldridge</i>        | <i>Middlesex and Worcester</i> | <i>2/10/2025</i> |
| <i>James K. Hawkins</i>         | <i>2nd Bristol</i>             | <i>2/11/2025</i> |

# HOUSE . . . . . No. 951

---

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 951) of Carmine Lawrence Gentile, James B. Eldridge and James K. Hawkins for legislation to eliminate hydraulic fracturing in the Commonwealth. Environment and Natural Resources.

---

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to eliminate hydraulic fracturing in the Commonwealth.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 26A of chapter 21 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting after the word “effluent”, in line 67, the  
3   following words:- , hydraulic fracturing fluid.

4           SECTION 2. Section 27 of said chapter 21, as so appearing, is hereby amended by adding  
5   the following clause:-

6           (14) Enforce restrictions on drilling, waste treatment and disposal and mining activities  
7   which have been enacted to protect the water quality and the natural resources of the  
8   commonwealth.

9           SECTION 3. Section 42 of said chapter 21, as so appearing, is hereby amended by  
10   inserting after the word “commonwealth”, in line 3, the following words:- ,or into an injection  
11   well or into a treatment works in the commonwealth.

SECTION 4. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“Fluid”, any material or substance which flows or moves whether in semi-solid, liquid, sludge, gas or any other form or state.

“Gas”, all natural gas, whether hydrocarbon or nonhydrocarbon, including hydrogen sulfide, helium, carbon dioxide, nitrogen, hydrogen, casinghead gas and all other fluid hydrocarbons not defined as oil.

“Hydraulic fracturing”, the process of pumping a fluid into or under the surface of the ground in order to create fractures in rock to produce or recover oil or gas.

“Oil”, crude petroleum, oil and all hydrocarbons, regardless of specific gravity, that are in the liquid phase in the reservoir and are produced at the wellhead in liquid form.

“Oil and gas”, oil and gas collectively, or either oil or gas, as the context may require to give effect to the purposes of this chapter.

“Enhanced geothermal systems,” the process of injecting fluid into naturally existing or artificially created fractures in rock to enable the production of geothermal energy.

(b) a person shall not engage in hydraulic fracturing in the Commonwealth, except when performed as part of an enhanced geothermal system for the purpose of energy production.

(c) a person shall not collect, store, treat or dispose of wastewater hydraulic fracturing fluid, wastewater solids, drill cuttings or other byproducts from hydraulic fracturing in the Commonwealth, except as generated from enhanced geothermal systems.